

NOVATECH SOLUTIONS PVT. LTD.

Master Software-as-a-Service Agreement

MSA Ref: NT-MSA-2025-0847 | Version 3.2 | Effective: 1 January 2025

SERVICE PROVIDER	CLIENT
NovaTech Solutions Pvt. Ltd.	Meridian Retail Pvt. Ltd.
CIN: U72900KA2018PTC112453	CIN: U52100MH2020PTC341287
12th Floor, Prestige Tech Tower,	Office 304, Raheja Towers,
Outer Ring Road, Bengaluru - 560103	Bandra Kurla Complex, Mumbai - 400051
Contact: legal@novatechsolutions.in	Contact: procurement@meridianretail.in

This Master Software-as-a-Service Agreement ("Agreement") is entered into as of 1st January 2025 ("Effective Date") by and between NovaTech Solutions Pvt. Ltd. ("Provider") and Meridian Retail Pvt. Ltd. ("Client"). The parties agree to the following terms and conditions governing the provision of cloud-based software services.

1. DEFINITIONS

1.1 "Services" means the NovaTech Retail Intelligence Platform ("Platform"), including all modules, APIs, dashboards, and related software made available to Client as a subscription service via Provider's cloud infrastructure.

1.2 "Subscription Term" means the initial period of twenty-four (24) months commencing on the Effective Date, and any Renewal Terms thereafter.

1.3 "Confidential Information" means any non-public technical, business, financial, or operational information disclosed by either party, whether marked confidential or not, if a reasonable person would consider it confidential given the nature of the information.

1.4 "Work Product" means all deliverables, configurations, customisations, integrations, reports, and derivative works created by Provider specifically for Client under this Agreement.

2. SUBSCRIPTION AND ACCESS

2.1 Provider grants Client a non-exclusive, non-transferable, non-sublicensable right to access and use the Platform solely for Client's internal business operations during the Subscription Term, subject to the terms of this Agreement.

2.2 Client shall not resell, sublicense, reverse engineer, decompile, or disassemble any component of the Platform. Client shall not use the Platform to develop a competing product or service. Any breach of this clause shall constitute a material breach entitling Provider to immediate termination.

2.3 Client is responsible for all activity occurring under its user accounts. Client shall promptly notify Provider of any unauthorised access or suspected security breach.

3. SUBSCRIPTION FEES AND RENEWAL

3.1 Client shall pay an annual subscription fee of INR 18,00,000 (Eighteen Lakh Rupees) per year, invoiced quarterly in advance. All fees are exclusive of applicable taxes including GST.

3.2 **Automatic Renewal.** This Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term. Provider reserves the right to increase subscription fees by up to twenty percent (20%) upon each renewal, with thirty (30) days written notice to Client.

3.3 **Minimum Commitment.** Client commits to a minimum annual spend of INR 18,00,000 regardless of actual usage or the number of active users. No refund or credit shall be provided for unused capacity or modules.

3.4 Overdue payments shall accrue interest at the rate of eighteen percent (18%) per annum from the due date until full payment is received.

4. INTELLECTUAL PROPERTY

4.1 **Provider IP.** All rights, title, and interest in and to the Platform, including all underlying software, algorithms, models, documentation, and enhancements, shall remain the exclusive property of Provider. Nothing in this Agreement transfers any ownership rights in the Platform to Client.

4.2 **Work Product Assignment.** All Work Product created by Provider during the performance of this Agreement, including custom modules, integrations, reports, and configurations developed specifically for Client, shall be and remain the sole and exclusive property of Provider. Client hereby irrevocably assigns to Provider all rights, title, and interest in any Work Product. Client shall execute any documents reasonably required by Provider to perfect such assignment.

4.3 **Client Data.** Client retains ownership of its raw data uploaded to the Platform. However, Provider is hereby granted a perpetual, irrevocable, royalty-free licence to use anonymised and aggregated derivatives of Client Data to improve Provider's products and services, train machine learning models, and develop benchmarks, without restriction.

4.4 **Feedback.** Any feedback, suggestions, or ideas provided by Client regarding the Platform shall become the exclusive property of Provider, and Provider may use such feedback without restriction, compensation, or attribution to Client.

5. CONFIDENTIALITY

5.1 Each party agrees to maintain the confidentiality of the other party's Confidential Information using at least the same degree of care it uses to protect its own confidential information, and in no event less than reasonable care.

5.2 Confidential Information shall not be disclosed to third parties without prior written consent, except to employees or contractors who have a need to know and are bound by equivalent confidentiality obligations.

5.3 Confidentiality obligations under this Section shall survive termination of this Agreement for a period of three (3) years.

6. LIABILITY AND INDEMNIFICATION

6.1 Provider Liability. Provider's total aggregate liability to Client arising out of or in connection with this Agreement, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, shall not exceed INR 50,000 (Fifty Thousand Rupees), regardless of the number of claims or the total fees paid by Client.

6.2 Client Indemnification. Client shall indemnify, defend, and hold harmless Provider, its directors, officers, employees, affiliates, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including legal fees on a full indemnity basis) arising out of or relating to: (a) Client's use or misuse of the Platform; (b) Client's breach of this Agreement; (c) any third-party claims arising from Client's data or business operations; or (d) any violation of applicable law by Client. This indemnification obligation is unlimited in amount and shall survive termination of this Agreement.

6.3 Exclusion of Consequential Damages. Provider shall not be liable for any indirect, incidental, special, punitive, or consequential damages, including loss of profits, loss of data, or business interruption, even if advised of the possibility of such damages.

7. TERM AND TERMINATION

7.1 Term. This Agreement commences on the Effective Date and continues for the initial Subscription Term of twenty-four (24) months, subject to automatic renewal per Section 3.2.

7.2 Termination for Convenience by Provider. Provider may terminate this Agreement at any time, for any reason or no reason, upon thirty (30) days written notice to Client. Upon such termination, Provider shall refund fees paid for the unused portion of the current quarter only.

7.3 Termination for Convenience by Client. Client may not terminate this Agreement for convenience during the Subscription Term. Early termination by Client shall result in immediate payment of all fees due for the remainder of the then-current Subscription Term as liquidated damages, which the parties agree is a genuine pre-estimate of Provider's loss.

7.4 Termination for Cause. Either party may terminate this Agreement immediately upon written notice if the other party commits a material breach and fails to remedy such breach within fourteen (14) days of receiving written notice specifying the breach.

7.5 Upon termination for any reason, Client shall immediately cease all use of the Platform. Client data shall be made available for export for a period of fifteen (15) days following termination, after which Provider may permanently delete all Client data without further notice.

8. RESTRICTIVE COVENANTS

8.1 Non-Compete. During the term of this Agreement and for a period of twenty-four (24) months following its termination or expiry, Client shall not, directly or indirectly, engage with, invest in, or procure services from any entity that provides software solutions substantially similar to the Platform in the retail analytics, inventory management, or demand forecasting sectors within India.

8.2 Non-Solicitation. During the term and for twelve (12) months after termination, Client shall not solicit, recruit, or hire any employee or contractor of Provider who was involved in delivering services under this Agreement.

9. GOVERNING LAW AND DISPUTE RESOLUTION

9.1 This Agreement shall be governed by and construed in accordance with the laws of the State of Karnataka, India, without regard to its conflict of law provisions.

9.2 Any dispute, controversy, or claim arising out of or relating to this Agreement shall be subject to the exclusive jurisdiction of the courts located in Bengaluru, Karnataka. The parties hereby irrevocably submit to the personal jurisdiction of such courts.

10. CHANGE OF CONTROL AND ASSIGNMENT

10.1 Provider may assign this Agreement or any rights hereunder to any affiliate or successor entity without Client's consent, including in connection with a merger, acquisition, or sale of substantially all of Provider's assets.

10.2 Client may not assign this Agreement or any of its rights or obligations without Provider's prior written consent, which may be withheld in Provider's sole discretion. Any purported assignment in violation of this clause shall be null and void.

10.3 In the event of a Change of Control of Provider, this Agreement shall continue in full force and effect and Client shall have no right to terminate solely on that basis.

11. AUDIT RIGHTS

11.1 Provider reserves the right to audit Client's use of the Platform at any time, with or without prior notice, to verify compliance with this Agreement, including the number of active users and modules accessed. Client shall provide Provider with reasonable access to its systems, records, and personnel for this purpose.

11.2 If an audit reveals that Client has exceeded its licensed usage, Client shall pay for such excess usage at Provider's then-current list prices, plus a fifteen percent (15%) audit fee.

12. GENERAL PROVISIONS

12.1 **Entire Agreement.** This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior agreements, representations, and understandings.

12.2 **Amendments.** Provider reserves the right to amend the terms of this Agreement at any time by providing thirty (30) days written notice to Client. Continued use of the Platform after such notice period shall constitute Client's acceptance of the amended terms.

12.3 **Severability.** If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

12.4 **Waiver.** Failure by either party to enforce any provision shall not constitute a waiver of future enforcement of that or any other provision.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

FOR NOVATECH SOLUTIONS PVT. LTD.

FOR MERIDIAN RETAIL PVT. LTD.

Authorised Signatory

Name: Karthik Venkataraman

Designation: Chief Executive Officer

Date: _____

Place: Bengaluru

Authorised Signatory

Name: Priya Mehta

Designation: Chief Procurement Officer

Date: _____

Place: Mumbai

NOTICE: This document is a synthetic contract generated for software testing purposes only. It does not constitute legal advice or a binding agreement between any real parties.